GUIDANCE NOTES — remove these notes before sending

Rent change at renewal — 90-day notice

When to use

- You are the landlord (or the landlord's authorised agent) and you want to change the rent, or another term, when the tenancy renews.
- Rent can be reviewed when the contract is renewed, before it expires (Art. 13, as amended).

When to send it

- The notice must be given at least 90 days before the contract expires, unless the parties agreed otherwise (Art. 14, as amended). If your contract sets a different period, that is a matter for your contract.
- How to count: take the expiry date and count back 90 days. Example: expiry 31 March 2027 → give notice no later than 31 December 2026. Send it earlier than the last day to allow time for delivery.
- Dubai Land Department: an increase is applied only if the landlord gave notice at least 90 days before expiry and the Smart Rent Index confirms the property is eligible. Without the 90-day notice, the increase is not applied.

Check the maximum increase first

- Run the official DLD Rental Index calculator for the unit (Dubai REST app, DLD website, DubaiNow, or the Ejari system) and attach the result.
- Decree 43/2013 caps the increase by how far the current rent is below the average rent of similar units (the percentage is of the current rent):

Current rent compared with the average for similar units	Maximum increase
Up to 10% below	No increase
11% to 20% below	5%
21% to 30% below	10%
31% to 40% below	15%
More than 40% below	20%

- Worked example: current rent AED 100,000; index average AED 120,000. The current rent is 16.7% below the average (20,000 ÷ 120,000), which falls in the 11–20% band, so the maximum is 5% of AED 100,000 = AED 5,000. New rent at most AED 105,000.
- The calculator's result is the figure to rely on; use it rather than your own estimate.

How to deliver it

- The law defines a Notice as a written notification sent through a Notary Public, or delivered by registered mail, by hand, or by any other technological means approved by law (Law 26/2007 Art. 2, as amended by Law 33/2008).
- The law does not list which electronic means count. A Notary Public or registered mail gives the clearest proof of delivery.
- Government notary fee to attest a notice: AED 200 (Executive Council Resolution 72/2025). Other charges may apply.
- Keep a signed copy and the proof of delivery (notary record, registered-mail receipt, or the recipient's signed acknowledgement).

Before you send — check

- Names and unit match the tenancy contract and Ejari.
- The delivery date is at least 90 days before the expiry date.
- The proposed increase is not more than the calculator allows, and the printout is attached.
- Signed by the landlord, or by an agent with written authority.

Legal basis: Law 26/2007 Art. 13, 14 (as amended by Law 33/2008); Decree 43/2013 Art. 1, 3. Law as of 3 November 2026. Template T01 v1.2.

General information and templates only, not legal advice. For your specific case consult a licensed legal practitioner in the UAE.

What this template does not do

- This template is general information. It does not decide whether the rule applies to your situation, and it does not interpret your tenancy contract. Disputes are decided by the Rental Disputes Center (Decree 26/2013).

Legal basis (official sources, retrieved 2026-11-03)

- Law 26/2007 Art. 13 and 14 as superseded by Law 33/2008 (90-day notice to amend terms) — https://dlp.dubai.gov.ae/Legislation%20Reference/2009/Law%20No.%20(33)%20of%202008%20Amending%20Law%20No.%20(26)%20of%202007.html
- Law 26/2007 Art. 10 (RERA sets rent-increase criteria) — https://dlp.dubai.gov.ae/Legislation%20Reference/2007/Law%20No.%20(26)%20of%202007%20Regarding%20regulation%20between%20the%20lessor%20and%20the%20lessee.html
- Decree 43/2013 Art. 1 (increase bands) and Art. 3 (average from the RERA Rent Index) — https://dlp.dubai.gov.ae/Legislation%20Reference/2013/Decree%20No.%20(43)%20of%202013%20Determining%20Rent%20Increase%20for%20Real%20Property.html
- DLD statement on the Smart Rent Index and the 90-day notice, 16 Feb 2025 — https://dubailand.gov.ae/en/news-media/the-smart-rent-index-mitigates-inflation-in-dubai-and-enhances-market-transparency/
- DLD Rental Index e-service — https://dubailand.gov.ae/en/eservices/rental-index/?lang=en
- Executive Council Resolution 72/2025, Schedule 1 (notary fee AED 200) — https://dlp.dubai.gov.ae/Legislation%20Reference/2025/Executive%20Council%20Resolution%20No.%20(72)%20of%202025%20Amending%20Executive%20Council%20Resolution.html

The English texts are the official translations published by the Supreme Legislation Committee, Dubai; the Arabic text prevails in case of conflict.

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[Sender's name and address, or letterhead]

Date: **[DD Month YYYY]**

To: **[Tenant full name, as in the tenancy contract]**

From: **[Landlord full name]**

Agent (delete this line if none): **[agent name]**, authorised under **[power of attorney / management agreement ref]**

Property: **[unit no.]**, **[building]**, **[community]**, Dubai

Ejari no.: **[number]** · Tenancy contract dated **[date]**, expiring on **[expiry date]**

Notice of change to the rent at renewal

Dear **[tenant name]**,

1. This is a notice under Article 14 of Law No. 26 of 2007 (as amended by Law No. 33 of 2008). On renewal of the tenancy contract for the property above, I wish to change the annual rent. This notice is given at least ninety (90) days before the contract expiry date of **[expiry date]**.

2. The rent:

	AED
Current annual rent	**[current rent]**
Proposed annual rent from **[renewal start date]**	**[new rent]**
Increase	**[difference]** (**[X]**% of the current rent)

3. The Dubai Land Department Rental Index result dated **[date]** (copy attached) shows an average annual rent of AED **[index average]** for similar units and a maximum allowed increase of **[Y]**% for this property under Decree No. 43 of 2013. The proposed increase does not exceed this.

4. All other terms of the tenancy contract remain unchanged. Other proposed changes (delete if none): **[list]**.

5. Please let me know by **[reply date]** whether you wish to renew on these terms, so the renewal can be registered in Ejari.

Yours sincerely,

Signature: _____

Name: **[full name]** · Capacity: **[Landlord / authorised agent of the landlord]**

Phone / email: **[contact details]**

*Attachment: DLD Rental Index result dated **[date]***

Proof of delivery (keep with your copy)

Method	Reference / evidence	Date
Notary Public	**[ref]**	**[date]**
Registered mail	**[ref]**	**[date]**
By hand — tenant's signature below	**[ref]**	**[date]**
Other: **[method]**	**[ref]**	**[date]**

Received by tenant (hand delivery): Name [ ] · Signature _____ · Date [ ]

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